

RESOLUTION NO. _____

ENTITLED: **“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR STANFIELD ADDITION, 4TH FILING, A REPLAT OF LOTS 1-4, BLOCK 652, STANFIELD ADDITION, CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED AT THE SOUTHWEST CORNER OF THE INTERSECTION OF THOMES AVENUE AND W. 6TH STREET).”**

WHEREAS, Northland Holdings, LLC, has subdivided said land in accordance with the statutes in such cases made and provided; and

WHEREAS, Northland Holdings, LLC, the owner of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, block, easements, and right-of-way; and

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the governing body; and the plat has been duly executed by the Development Office.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Stanfield Addition, 4th Filing, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2020.

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

MARIAN J. ORR, MAYOR

STAFF REPORT - SUMMATION

Stanfield Addition, 4th Filing Expedited Preliminary Plat

CASE NUMBER(s): UDC-20-00174

SUBDIVISION CODE: STN 04

PREPARED BY: Seth Lloyd

MEETING DATES:

Planning Commission:	July 6, 2020
City Council:	July 13, 2020
Public Service Committee:	July 21, 2020
City Council:	July 27, 2020

REQUIRED DOCUMENTS SUBMISSION: The following documents have been submitted and reviewed by Staff:

- Master Application; Variance Approval Letter; Preliminary Plat Map; Final Plat Map; Drainage Worksheet; Traffic Worksheet; Request for Waivers of Traffic Study, Environmental Impact Assessment (EIA), & Transportation Network Plan.
- Open Space Narrative – submitted May 4, 2020 (to complete application)
- Revised Preliminary Plat Map; Revised Final Plat Map – submitted June 3, 2020 (submitted in response to Staff comments)

FEES DUE AT SIGNING OF THE PLAT: \$0.00

PLANNING COMMISSION RECOMMENDATION: At their regular meeting on July 6, 2020, the City of Cheyenne Planning Commission recommended approval of the expedited Preliminary Plat, advancing the Final Plat to the Governing Body, by a vote of 3-0.

STAFF RECOMMENDATION: Staff recommends approval of the expedited Preliminary Plat advancing the Final Plat to the Governing Body.

STAFF REPORT

Stanfield Addition, 4th Filing **Expedited Preliminary Plat**

CASE NUMBER(s): UDC-20-00174 **SUBDIVISION CODE:** STN 04
PREPARED BY: Seth Lloyd
PUBLIC HEARING: July 6, 2020 (Planning Commission)

OWNER: Northland Holdings, LLC (970) 218-2296
Douglas Marquiss dmarquiss7@gmail.com
1808 N Boise Avenue, Unit 200
Loveland, CO 80538

AGENT: Steil Surveying Services (307) 634-7273
Casey Plama, AICP cpalma@steilsurvey.com
1102 W 19th St.
Cheyenne, WY 82001

PROJECT: Stanfield Addition, 4th Filing Preliminary and Final Plat (expedited plat)

WORK DESCRIPTIONS: A request to replat Lots 1-4, Block 652, Stanfield Addition, Cheyenne, Laramie County, Wyoming (located at the southwest corner of the intersection of Thomes Ave and W. 6th St).

LOCATION:

1. Legal Description: Lots 1-4, Block 652, Stanfield Addition, Cheyenne, Laramie County, Wyoming
2. Location: at the southwest corner of the intersection of Thomes Avenue and W. 6th Street
3. Addresses: 509, 507, 511, 513, 515, and 517 W. 6th St.; and 518 and 520 Thomes Ave.

SIZE: 0.5 acres

CURRENT ZONING: MR Medium-density Residential
PROPOSED ZONING: MR Medium-density Residential
EXISTING LAND USE: Multifamily (more than 2 units on one lot)
PROPOSED LAND USE: Duplexes (no more than 2 units on one lot) and Multifamily (more than 2 units on one lot)

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Single-family Residential	MR	City
South	Single-family, Duplex, and Multi-family Residential	MR	City
East	Open Space	MUB	City
West	Single-family, Duplex, and Multi-family Residential	MR	City

EXPEDITED REVIEW:

This plat is being pursued as an expedited application. An expedited review process is a concurrent preliminary and final plat. A project may be eligible for an expedited review when the proposal contains no significant planning, design or engineering issues. In other words, proposals that meet all applicable regulations and generally meet the review criteria for preliminary and final plat may be eligible for the concurrent preliminary and final plat process.

Due to meeting the expedited plat criteria set forth in Section 2.1.2.c(3) of the Cheyenne Unified Development Code, Staff recommends allowing the plat to proceed as an expedited application.

EXECUTIVE SUMMARY:

The proposed platting action is intended to re-arrange lot lines around existing structures to allow the individual sale of structures. The original development was multiple 2-unit buildings built as a multi-family project over lot lines on a large ownership parcel. The two-unit buildings could function as duplexes if subdivided and appropriately provided with separate utility services.

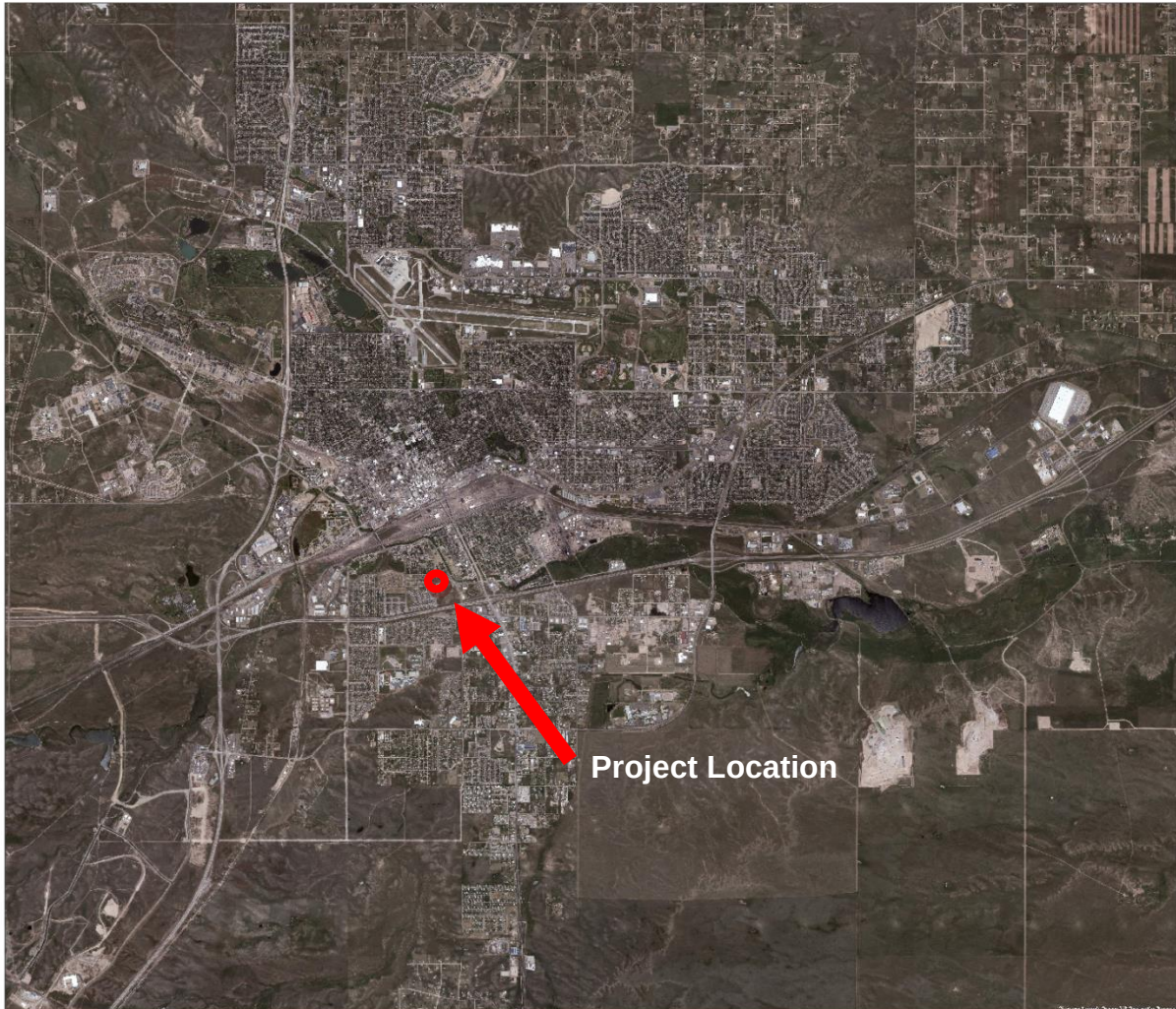
The original residential project was not built to current standards and as there is no intention to demolish the existing development. As such, variances were required to allow the existing structures within the proposed subdivision. These variances were approved for the existing structures, but any redevelopment of these lots would be expected to meet current standards.

As the existing structures are expected to remain, the influence on the surrounding neighborhood by this platting action is expected to be minimal. The street network, utilities, open spaces, drainage patterns, are all pre-existing. Both the future land use designation and current zoning reflect the existing conditions at this site.

The applicant also owns land about a block away which is in a similar situation and is concurrently going through the platting process as Stanfield Addition, 5th Filing.

Due to meeting the review criteria set forth in Section 2.1.2.d and 2.1.3.d of the Cheyenne Unified Development Code, staff recommends the Planning Commission approves this expedited plat, advancing the final plat to the Governing Body.

LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map

Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting subject property located southwest of the intersection of W 6th St. and Thomes Ave.

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEWS OF SUBJECT PROPERTY:



Photograph #1 – Image of the subject property from the intersection of W 6th Street and Thomes Avenue, facing south
Source: Development Office



Photograph #2 – Image of the subject property from the W 6th Street, facing southeast
Source: Development Office

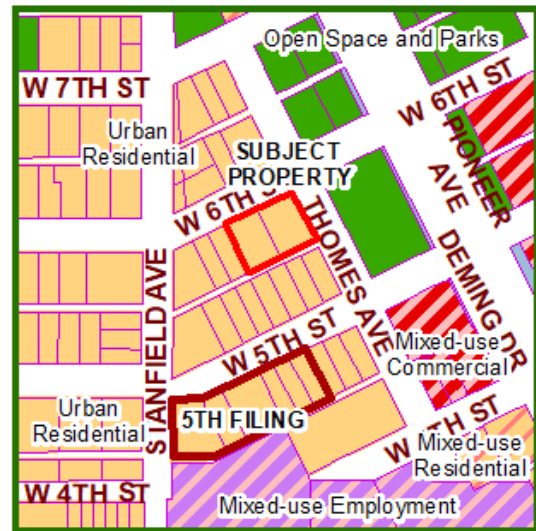
PRELIMINARY PLAT DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed preliminary plat, the Staff, Planning Commission and City Council shall use the following 8 criteria, as found in Section 2.1.2.d:

1. PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in PlanCheyenne.*

PlanCheyenne is supportive of this proposed plat.

On the future land use map found in PlanCheyenne, the subject land has been designated as Urban Residential. The Urban Residential future land use designation encourages a variety of residential uses and densities as the primary development pattern. The existing development patterns within and around the plat boundary meet these expectations and the proposed plat would not adversely affect the neighborhood.

Principle 7.2 of PlanCheyenne encourages growth to be coordinated in such a way that services and utilities are adequate to service development and provided in a timely manner. While the property is already developed, the utility service lines require re-arrangement to allow the individual sale of the land.



Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS
Cooperative Program

2. PLANNING - *The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.*

This plat proposes creating 3 new lots from 4 pre-existing lots (which were combined into one ownership parcel). The original development built four 2-unit buildings as a multi-family development on these 4 lots without respect to the internal lot lines. The proposed platting action would re-arrange the lot lines in such a way that 2 of the existing structures would be on their own lots, and the remaining 2 structures would be on one shared lot. There is no proposal to demolish the existing buildings or redevelop the site. The street network, utilities, open spaces, drainage patterns, are all pre-existing and the proposed plat would not have an undue influence on the neighborhood.

3. SUBDIVISION STANDARDS - *Division of land meets the purposes, intent, and all applicable standards in Article 4.*

Transportation Network:

The plat proposes dividing land within a previously-approved street network – no additions or subtractions from the transportation network are suggested.

Community Facility Fees:

This land was platted as part of Stanfield Addition in 1923. While plat fees did not exist in 1923, this plat is exempt from paying plat fees as it meets the requirements of UDC 4.2.5.c.6:

"Where land is being replatted, it shall be exempt if:

(a) The replat consists only of reconfiguring or eliminating interior lot lines with no additional land or building area added to the development;

(b) The replat results in no additional dwelling units, residential units, non-residential units or lots, and therefore causes no greater impact on public park facilities than the original plat; and

(c) The replat results in no change in zoning, density, or intensity of use than the original plat."

Total Fees due at signing of the plat: \$0.00

Open Space:

During the plat process, this property is not required to provide open space. This plat qualifies for an exception (UDC 4.4.2.b).

Required Improvements:

This division can provide all required utilities to the properties within this development.

Re-arrangement of water and sewer service lines will be required if the lots are to be sold off individually.

4. PHASING - *Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.*

No phasing is proposed with this plat.

5. STUDIES - *The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.*

The applicant submitted a traffic worksheet and drainage worksheet. No other studies were requested with this application and no concerns were identified by Staff with the information provided.

6. ZONING - *All proposed lots shall be buildable lots according to the existing or proposed zoning district standards, and result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district. All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance.*

The proposed lots are buildable lots in the proposed zone district. Variances were sought and granted to allow the existing buildings to remain on the proposed lots, but if the existing structures were demolished, new, compliant structures could be built on these lots.

The MR Medium-density Residential zone is intended for a mix of residential uses with full access to city services. The existing development pattern meets the intent and applicability of the MR zone and the proposed plat does not propose modifications to the current development.

No lots are proposed as unbuildable.



Map #4 – Current Zoning
Source: Cheyenne/Laramie County GIS Cooperative Program

7. SURROUNDING DEVELOPMENT - *The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.*

Surrounding development is largely residential in nature. Nearby properties contain a mix of single-family, duplex, and multi-family style development. To the east, the land is open space near Crow Creek. The current development patterns and those proposed by this plat are consistent with the Comprehensive Plan's expectations for this area of the community. The proposed plat does not create an undue influence on the surrounding area.

8. PUBLIC HEALTH, SAFETY, AND WELFARE – *Whether the application will harm the public health, safety or general welfare.*

Staff is satisfied the proposed plat would not adversely affect the public health, safety, or general welfare.

FINAL PLAT DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed final plat, the Staff, Planning Commission and City Council shall use the following 3 criteria, as found in Section 2.1.3.d:

1. The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan.
2. The application meets any conditions or modifications of the approved preliminary plat.
3. The application meets the purposes, intent, and applicable standards of Article 4.

As this plat is being pursued as an expedited application, review criteria 1 and 2 are not applicable. Review criterion 3 is also found in the Preliminary Plat process (as criterion 3) and is covered in subsection 3 above.

REVIEW

The following agencies were asked to review the proposed project: 911/Combined Communications, Black Hills Energy, Board of Public Utilities (BOPU), Building Department, CenturyLink, Charter, Community Recreation and Events, Emergency Management, Engineering, Environmental Health Department, Fire Department, Laramie County Assessor, Laramie County Attorney, Laramie County Clerk, Laramie County School District #1, Metropolitan Planning Office, and Planning and Development.

COMMENTS FROM REVIEWING AGENCIES:

- **(Fulfilled by revised submittal)** Please show the water service connection for 511 and 513 on Lot 3 on the Preliminary Plat Map.
- **(FYI)** Note that lots are not divisible until proper individual BOPU service lines are installed. Until installation, Northland Holdings LLC will be required to enter into a common water and sewer service connection agreement with the Board of Public Utilities for lots 2 and 3.
- **(FYI)** Lots 1 and 2 are proposed to be SD3 lot types. With existing structures, these lots do not meet minimum setbacks. Variance to these deficiencies (UDC-19-00618) approved November 21, 2019.
- **(FYI)** Lot 3 is proposed to be a MD2 lot. With existing structures, this lot does not meet minimum frontage or maximum setback. Variance to these deficiencies (UDC-19-00618) approved November 21, 2019.
- **(Fulfilled by revised submittal)** Remove the original plat's lots and the "Draft" watermark from the Final Plat Map.
- **(Fulfilled by revised submittal)** Suggest modification to Note 4 to have the last variance listed as "e" or combine "b" and "c" (such that each variance is its own letter or each lot is its own letter).
- **(FYI)** Property appears to fulfill exemption requirements of UDC 4.2.5.c - no fees would be due at time of plat signing.
- **(FYI)** Plat largely appears to meet all review criteria and eligibility for an expedited plat.
- **(Fulfilled by revised submittal)** Sidewalk will need to be added along Thomes.

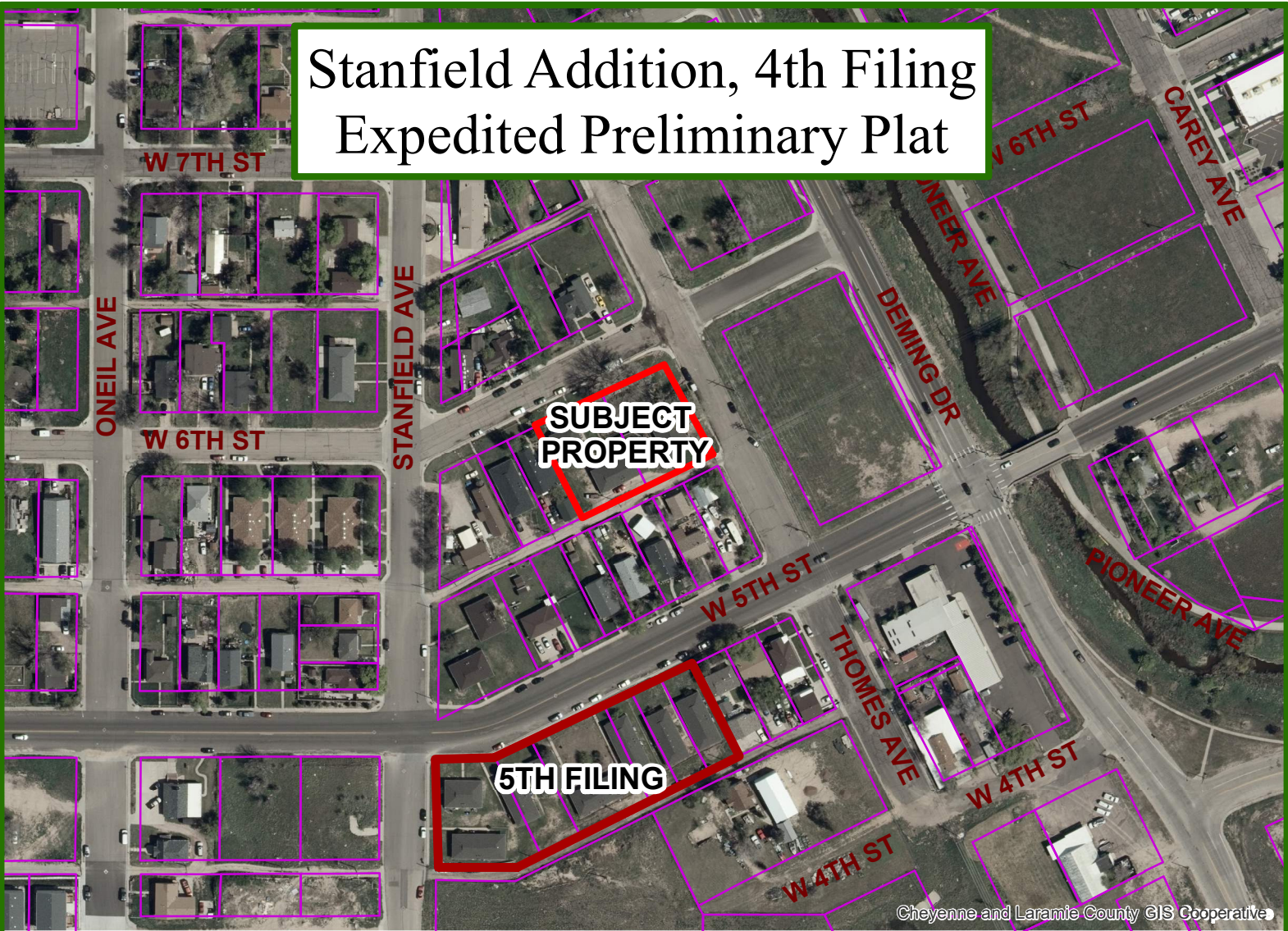
OTHER COMMENTS RECEIVED:

- None

Attachments: Aerial Map; Preliminary Plat Map; Final Plat Map

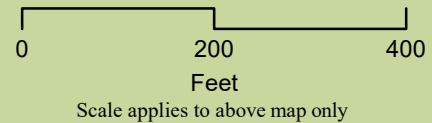
cc: Owner; Agent/Applicant; File

Stanfield Addition, 4th Filing Expedited Preliminary Plat

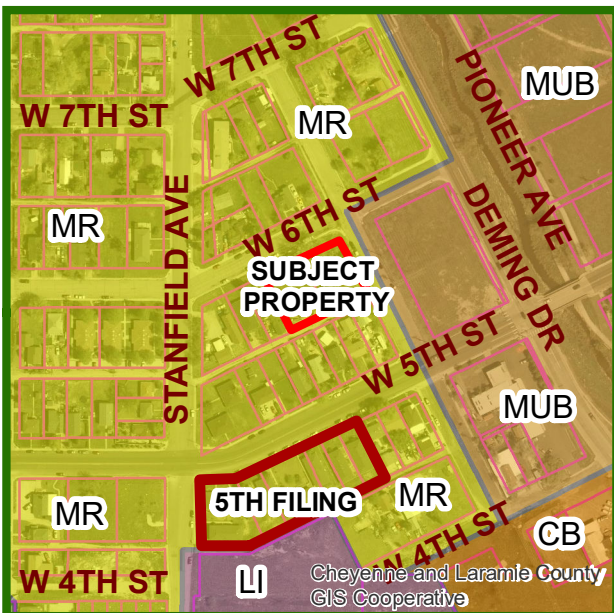


Application Number
Preliminary Plat
UDC-20-00174

Applicant: Steil Surveying Services
Casey Palma, AICP
Owner: Northland Holdings, LLC
Douglas Marquiss



Current Zoning



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



DOMESTIC WATER & SANITARY SEWER PROVIDED BY CITY OF CHEYENNE BOPU - FIRE PROTECTION TO BE PROVIDED BY CHEYENNE FIRE & RESCUE
THE SURFACE ESTATE OF THE LAND TO BE SUBDIVIDED IS SUBJECT TO FULL AND EFFECTIVE DEVELOPMENT OF THE MINERAL ESTATE

LEGEND

- SET 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON 3/4" x 24" REBAR
- FOUND 1/2" ALUMINUM CAP STAMPED "LS 2927"
- FOUND 3/4" IRON PIPE
- FOUND 3/4" REBAR
- FOUND MAG NAIL
- GUARD POST
- EXISTING UTILITY POLE
- EXISTING GUY WIRE
- EXISTING MAIL BOX
- EXISTING SANITARY SEWER MANHOLE
- EXISTING OVERHEAD ELECTRIC LINES
- EXISTING CHAIN LINK FENCE
- EXISTING WOOD FENCE LINE
- EXISTING FIRE HYDRANT
- EXISTING WATER MAIN/SERVICE
- EXISTING SANITARY SEWER SERVICE
- EXISTING TELEPHONE PEDestal
- EXISTING ELECTRIC BOX
- EXISTING CLEAN OUT
- EXISTING DECIDUOUS TREE
- EXISTING SHRUB
- EXISTING BITUMINOUS SURFACE
- EXISTING CONCRETE SURFACE
- EXISTING GRAVEL SURFACE

PARKING REQUIREMENTS & TRIP GENERATION
SEMI-ATTACHED RESIDENTIAL UDC6.2.4 (2 SPACES/UNIT)
PARKING REQUIRED [2 x 8] 16 SPACES
PARKING PROVIDED 13 SPACES
ON-STREET 13 SPACES
TOTAL PARKING PROVIDED 16 SPACES

GENERAL INFORMATION

PLAT BOUNDARY AREA = 23,225 SF
STREET R/W: N/A
OTHER DEDICATION/CONVEYANCE: N/A
EXISTING BUILDING AREA = 6,776 SF
PAVED AREAS = 600 SF
TOTAL LOT COVERAGE = 33%
STREET R/W: N/A
OTHER DEDICATION/CONVEYANCE: N/A
BLOCK PERMETER: N/A
NUMBER OF LOTS: 4
NUMBER OF RESIDENTIAL LOTS: 4

NOTES

- BASES OF BEARINGS - WYOMING STATE PLANE COORDINATES, EAST ZONE NAD83-2011. DISTANCES ARE GROUND DISTANCES. SITE COMBINATION FACTOR: 0.999661891
- ALL UNMONUMENTED LOT CORNERS, ANGLE POINTS, AND POINTS OF CURVATURE TO BE MONUMENTED WITH 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON 3/4" x 24" REBAR.
- NO PORTION OF THE LANDS CONTAINED WITHIN THE PLAT BOUNDARY AS SHOWN FALL WITHIN A F.E.M.A. 100-YEAR SPECIAL FLOOD HAZARD AREA PER F.I.M.M. PANEL NO.50021C13527, DATED JANUARY 17, 2007.
- VARIANCES FOR EXISTING NON-COMFORMANCES RELATIVE TO PROPOSED REPEAT APPROVED BY THE CITY OF CHEYENNE BOARD OF ADJUSTMENT ON NOVEMBER 21, 2019, SUMMARIZED AS FOLLOWS:
 - a. Reduction of min. rear setback from 20' to 10' (proposed Lot 1, 4th Filing);
 - b. Reduction of min. lot area from 6,000sf to 5,081sf (proposed Lot 2, 4th Filing);
 - c. Reduction of min. front setback from 25' to 11.5' (proposed Lot 2, 4th Filing);
 - d. Reduction of min. frontage from 80' to 69' (proposed Lot 3, 4th Filing); and
 - e. Accession of max. front setback from 20' to 20.2' (proposed Lot 3, 4th Filing).

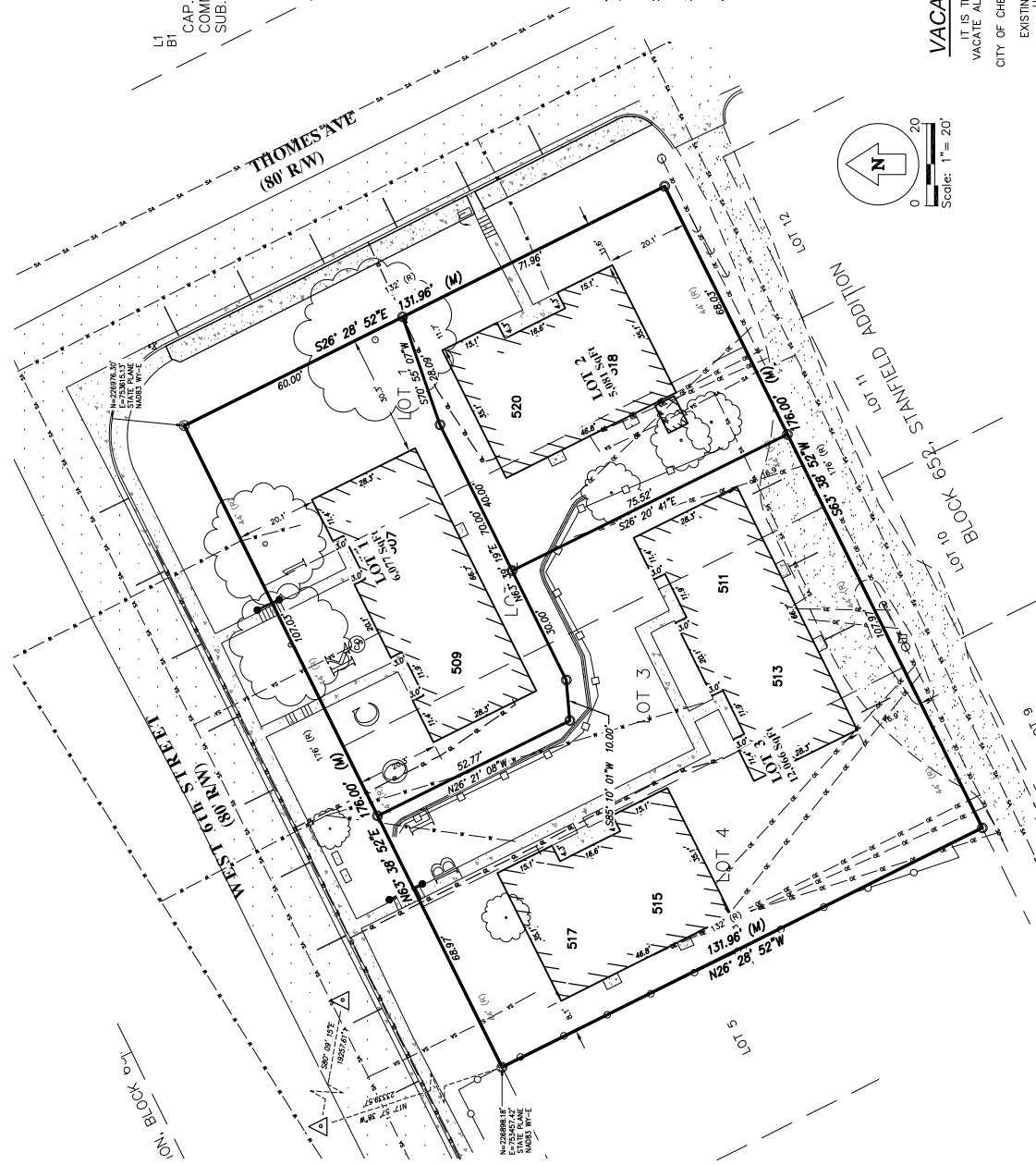
VACATION STATEMENT

IT IS THE INTENT OF THIS REPEAT TO
VACATE ALL OF LOTS 1 THRU 4, BLOCK 652,
CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING
EXISTING EASEMENTS ARE TO REMAIN
UNLESS NOTED OTHERWISE

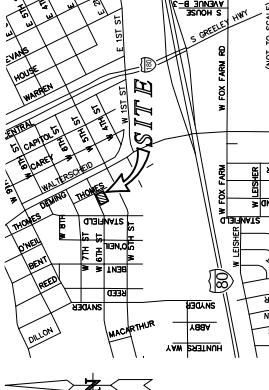
CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Licensed Professional Land Surveyor in the State of Wyoming, for and on behalf of STEIL SURVEYING SERVICES, LLC, do hereby certify that the foregoing is a true and correct copy of the original survey, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision and that this survey and that the monuments found or set are as shown.

REMOVED: 6/3/2020
-SSS STANFIELD\18247 RESUB STANFIELD 652-6594-4W
© COPYRIGHT 2019 STEIL SURVEYING SERVICES, LLC ALL RIGHTS RESERVED



VICINITY MAP



DEDICATION

KNOW ALL PERSONS BY THESE PRESENTS THAT: NORTHLAND HOLDINGS, LLC, owner in fee simple of All of Lots 1, 2, 3, & 4, Block 652, Stanfield Addition, City of Cheyenne, Laramie County, Wyoming

Has caused the same to be surveyed, vacated, and replatted to be known as STANFIELD ADDITION, 4th FILING and does hereby declare the subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desires.

by: _____ OF _____ TITLE _____
PRINT NAME _____ for Northland Holdings, LLC

PRELIMINARY PLAT for STANFIELD ADDITION, 4th FILING

A REPEAT OF
ALL OF LOTS 1 THRU 4, BLOCK 652,
STANFIELD ADDITION, CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING
PREPARED APRIL 2019



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1102 WEST 19th ST. CHEYENNE, WY. 82001 o (307) 634-7373
726 GILCHRIST ST. WHEATLAND, WY. 82201 o (307) 522-8789
www.SteilSurvey.com o info@SteilSurvey.com

DOMESTIC WATER & SANITARY SEWER PROVIDED BY CITY OF CHEYENNE BOPU. FIRE PROTECTION TO BE PROVIDED BY CHEYENNE FIRE & RESCUE. THE SURFACE ESTATE OF THE LAND TO BE SUBDIVIDED IS SUBJECT TO FULL AND EFFECTIVE DEVELOPMENT OF THE MINERAL ESTATE.

DEDICATION

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by: _____ OS _____ TITLE _____ for Northland Holdings, LLC

ACKNOWLEDGEMENT

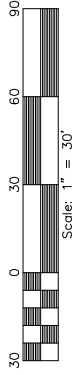
STATE OF WYOMING)
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me this _____ day of _____, 2020, by _____ as _____ for Northland Holdings, LLC.

My Commission Expires: _____
Notary Public, Laramie County, Wyoming

LEGEND

- SET 1/2" ALUMINUM CAP STAMPED "SSS PLS 5910" ON 1/2" x 24" REBAR
- FOUND 1/2" ALUMINUM CAP STAMPED LS 2927
- FOUND 3/4" REBAR
- FOUND 1/2" IRON PIPE
- FOUND NAIL



NOTES

- BASIS OF BEARINGS - WYOMING STATE PLANE COORDINATES, EAST ZONE NAD83-2011. DISTANCES ARE GROUND DISTANCES. SITE COMBINATION FACTOR: 0.999667891
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- VARIANCE(S) FOR EXISTING NON-CONFORMANCES RELATIVE TO PROPOSED REPLAT APPROVED BY THE CITY OF CHEYENNE BOARD OF ADJUSTMENT ON NOVEMBER 21, 2018, SUMMARIZED AS FOLLOWS:
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 - c. Reduction of min. front setback from 25' to 11.5' (proposed Lot 2, 4th Filing);
 - d. Reduction of min. frontage from 80' to 69' (proposed Lot 3, 4th Filing); and
 - e. Accession of max. front setback from 20' to 20.2' (proposed Lot 3, 4th Filing).

APPROVALS

Approved by the City of Cheyenne Planning Commission this _____ day of _____, 2020.

Planning & Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming this _____ day of _____, 2020.

Mayor

ATTEST: _____
City Clerk

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Licensed Professional Surveyor, being duly sworn, depose and say that this map was prepared by me or under my direct supervision, and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

VACATION STATEMENT

IT IS THE INTENT OF THIS REPLAT TO VACATE ALL OF LOTS 1 THRU 4, BLOCK 652, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING EXISTING EASEMENTS ARE TO REMAIN UNLESS NOTED OTHERWISE

FILING RECORD

